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[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION FOR ATTORNEY'S FEES IN THE AMOUNT OF $8,898.73

I. INTRODUCTION

On February 28, 2023, Plaintiffs William Wong and Joy Wong ("Plaintiffs") filed this action against Defendant American Honda Motor Co., Inc. ("Honda") asserting claims under the Song-Beverly Consumer Warranty Act arising from alleged defects in a 2018 Honda Odyssey. The parties ultimately resolved the matter through Defendant's Code of Civil Procedure section 998 Offer to Compromise, which Plaintiffs accepted on August 6, 2025.

On February 11, 2026, Plaintiffs filed the instant motion for attorney's fees, costs, and expenses. On July 30, 2026, Defendant filed an opposition pursuant to the parties' agreement permitting a late filing while they attempted to resolve the fee dispute informally. No reply has been filed.

II. LEGAL STANDARD

Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc, § 1033.5, subd. (a)(10)(B).)

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794(d).) Section 1794 provides:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code, § 1794 [emphasis added].) Thus, the statute includes a "reasonable attorney's fees" standard.

The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (Id.)

A plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated to not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford, supra, 132 Cal.App.4th at 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

III. ANALYSIS

Entitlement to Attorney’s Fees

Plaintiffs seek $9,835.00 in attorney's fees, together with a 1.35 lodestar multiplier of $3,442.25, for a total attorney fee award of $13,277.25. Plaintiffs also seek $1,651.23 in costs and expenses, as well as an additional $2,000.00 in anticipated fees for preparing a reply and attending the hearing on this motion. (Motion, pp. 1-2.)

The parties resolved this matter through a settlement pursuant to Defendant's Code of Civil Procedure section 998 Offer to Compromise. Under the terms of the settlement, Defendant American Honda Motor Co., Inc. agreed to pay Plaintiffs $5,000.00 cash and keep, together with reasonable attorney's fees, costs, and expenses pursuant to Civil Code section 1794(d), to be determined by noticed motion. The offer was accepted on August 6, 2025 (Baker Decl., ¶ 27, Exh. 4.)

Thus, Plaintiffs are the prevailing party and are entitled to recover reasonable attorney’s fees, costs, and expenses.

Reasonableness of Fees

Reasonable Hourly Rate:

To calculate a lodestar amount, the Court must first determine whether the hourly rates sought are reasonable. A reasonable hourly rate is that prevailing in the community for similar work performed by attorneys of comparable skill and experience. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133.)

Here, Plaintiffs seek compensation for work performed by attorneys of Strategic Legal Practices, APC ("SLP") at hourly rates ranging from $350 to $595.
Payam Shahian does not seek compensation for any of his time. (Shahian Decl., ¶¶ 3, 7, 9.)

Shahian declares that the attorneys who billed time on this matter possess substantial experience litigating Song-Beverly Act matters and details each attorney's qualifications, years of practice, and prior court orders approving their requested hourly rates in comparable consumer warranty actions, including several cases involving Defendant American Honda Motor Co., Inc. (Shahian Decl., ¶¶ 16-20.)

Defendant opposes the requested hourly rates, arguing they exceed prevailing market rates for routine lemon law litigation and urging the Court to reduce all attorney rates to no more than $350 per hour and paralegal rates to $150 per hour. (Opposition, pp. 4-5.)

Based on counsel's experience, specialization in Song-Beverly Act litigation, and the nature of the work performed, the Court finds the requested hourly rates reasonable. Plaintiffs submitted declarations establishing counsel's qualifications, specialization in consumer warranty litigation, and evidence that courts have repeatedly approved comparable hourly rates for SLP attorneys in similar Song-Beverly actions. (Shahian Decl., ¶¶ 16-20.) The Court finds this evidence sufficient to establish that the requested hourly rates are reasonable.

Thus, the hourly rates are reasonable.

Reasonable Hours Incurred:

The party seeking fees and costs bears the burden to show “the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

Plaintiffs seek compensation for 23.5 hours of attorney time, for a total of $9,835.00. Plaintiffs also seek an additional $2,000.00 in anticipated attorney's fees for reviewing Defendant's opposition, preparing a reply, and appearing at the hearing on the instant motion. (Motion, p. 4.)

Plaintiffs contend the requested hours were reasonably incurred in prosecuting this action. According to

Shahian, Strategic Legal Practices performed work including preparing the complaint, successfully opposing Defendant's motion to compel arbitration, conducting discovery, evaluating settlement offers, attending court hearings, and negotiating the settlement. Shahian further declares that all attorneys contemporaneously recorded their time and that he reviewed the billing records, removing or reducing any entries he believed to be unnecessary, duplicative, or excessive. (Shahian Decl., ¶¶ 4-6.)

Defendant argues the requested hours are excessive and unreasonable. Specifically, Defendant contends the parties' settlement agreement limits recoverable attorney's fees to those incurred through April 30, 2024, yet Plaintiffs seek fees for work performed after that date, including preparation of the instant fee motion. Defendant further argues the billing records contain excessive time devoted to discovery, preparation of standard pleadings, and other tasks that should have required substantially less attorney time. (Opposition, pp. 2-6.)

Here, the Court finds Defendant has not challenged the requested hours with the specificity required to warrant a reduction. Although Defendant generally contends that Plaintiffs overbilled for routine tasks and attaches a spreadsheet identifying billing entries it disputes, the opposition largely fails to explain why the majority of the challenged entries were unnecessary, excessive, or unreasonable. General assertions that the hours are excessive, without meaningful analysis of the specific time entries challenged, are insufficient. (See Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

However, Defendant separately argues that, pursuant to the parties' settlement agreement, recoverable attorney's fees, costs, and expenses are limited to those incurred through April 30, 2024. The Court agrees. Although the agreement permits Plaintiffs to seek attorney's fees by noticed motion, it expressly limits recovery to fees incurred through the April 30, 2024, cutoff date. Therefore, fees incurred after April 30, 2024, are not recoverable.

Plaintiffs' billing records include a September 23, 2025 entry for 7.5 hours of attorney time totaling $2,587.50, which was incurred after the contractual cutoff. The Court therefore excludes this amount. For the same reason, the Court denies Plaintiffs' request for an additional $2,000.00 in anticipated attorney's fees incurred in connection with the instant motion. Thus, the Court reduces the requested attorney's fees by $4,587.50.

1.35 Lodestar multiplier

Plaintiffs request a 1.35 lodestar multiplier, seeking an additional $3,442.25.

The Court declines to apply a multiplier. Although counsel possess significant experience in Song-Beverly Act litigation and represented Plaintiff on a contingency basis, those factors are adequately reflected in the hourly rates awarded. Further, this case did not involve unusually complex legal or factual issues and resolved through settlement before trial.

Thus, the Court DENIES the request for a 1.35 lodestar multiplier of $3,442.25.

Costs

A prevailing buyer under the Song-Beverly Act is entitled to recover reasonably incurred costs and expenses. (Civ. Code, § 1794(d).)

Plaintiffs seek $1,651.23 in costs and litigation expenses. (Motion, p. 4.) Defendant does not oppose the requested costs. (Opposition, p. 2, fn3.) The Court finds that the requested costs were reasonably incurred and are recoverable under Civil Code section 1794, subdivision (d).

Thus, the Court awards Plaintiffs’ costs in the amount of $1,651.23

IV. CONCLUSION AND ORDER

The Court GRANTS Plaintiffs' motion for attorney's fees and costs. Plaintiffs are awarded $7,247.50 in attorney's fees. Pursuant to the parties' agreed-upon April 30, 2024 cutoff for recoverable attorney's fees, the Court denies Plaintiffs' request for $2,000.00 in anticipated attorney's fees incurred in connection with the instant motion. Plaintiffs are also awarded $1,651.23 in costs, for a total award of $8,898.73.

The Court DENIES Plaintiffs' request for a 1.35 lodestar multiplier.

Plaintiff is to give notice.

Dated: August 10, 2026

JARED D. MOSES
JUDGE OF THE SUPERIOR COURT